

TENTATIVE RULING

CASE: **Lewis v. Cemex, Inc. et al.**
 Case No. CV2023-1829

Hearing Date: **May 5, 2026** **Department Eleven** **9:00 a.m.**

Motion to bifurcate:

Defendants Cemex, Inc., Cemex Construction Materials Pacific, LLC, and Bert Swartz's (collectively, "defendants") unopposed motion to bifurcate punitive damages claim is **GRANTED**. (Civ. Code § 3295, subd. (d); Code Civ. Proc., §§ 598, 1048; Evid. Code, § 352.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Motion to continue trial:

Defendants' motion to continue trial is **GRANTED**. (Cal. Rules of Court, rule 3.1332.) The current dates for the trial readiness conference and trial are **VACATED**.

Parties are **DIRECTED TO APPEAR** to select a new trial date.

TENTATIVE RULING

Case: **Morgan Creek Construction, Inc. v. Swinerton Builders, Inc.**
Case No. CV2025-2092

Hearing Date: **May 5, 2026** **Department Fourteen** **9:00 a.m.**

On March 27, 2026, defendant and cross-complainant Swinerton Builders, Inc. served its amended responses to plaintiff and cross-defendant Morgan Creek Construction, Inc.'s requests for production of documents (set one). (Harris decl., ¶ 2, Exhibit B.) After the service of these amended responses, plaintiff failed to adequately meet and confer before filing this motion (on April 3, 2026). (*Id.*, ¶¶ 3-4; Code Civ. Proc., § 2016.040, subd. (a) ["A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, *either in person, by telephone, or by videoconference*, to informally resolve each issue presented by the motion"], emphasis added.)

Therefore, on the Court's own motion, plaintiff's motion to compel further response to request for production, set one is **CONTINUED** to **July 7, 2026**, at 9:00 a.m. in Department Fourteen.

The parties are **DIRECTED** to further meet and confer regarding the issues raised by plaintiff's motion – in person, by videoconference, or by telephone – by May 28, 2026. (Code Civ. Proc., § 2016.040, subd. (a).)

By June 11, 2026, plaintiff **MUST** file: (1) a new meet and confer declaration regarding the parties' meet and confer efforts and any remaining issues for the Court's determination; and (2) a separate statement regarding discovery still at issue. (See Cal. Rules of Court, rule 3.1345.)

By June 25, 2026, defendant may file a responsive meet and confer declaration and separate statement.

If there are no remaining issues, plaintiff is **DIRECTED** to request that the July 7, 2026, hearing be vacated.